

24STCV06869 24STCV06869

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-08-06

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Case Number: 24STCV06869 Hearing Date: August 6, 2026 Dept: 415

TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

August 6, 2026

CASE NUMBER

24STCV06869

MOTION

Enforce Settlement Agreement

MOVING PARTY

Plaintiff Craig Johns

OPPOSING PARTY

None

MOTION

Plaintiff

Craig Johns ("Plaintiff") moves to enforce a settlement agreement with Defendant 8280 Sunset Lounge, LLC ("Defendant"). No opposition has been filed.

ANALYSIS

Code of Civil

Procedure section 664.6 provides, in relevant part, "[i]f parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement." In ruling on a motion to enter judgment, the Court acts as a trier of fact. In that capacity, the Court must determine whether the parties entered into a valid and binding settlement. To do so, the Court may receive and consider oral testimony in addition to declarations. (*Kohn v. Jaymar-Ruby, Inc.* (1994) 23 Cal.App.4th 1530, 1533.)

Plaintiff has

submitted a settlement agreement between Plaintiff and Defendant which reveals Defendant agreed to make two payments to Plaintiff until Defendant paid a total of \$175,000. (Declaration of Edgar Manukyan, Exhibit A.) Plaintiff advances evidence Defendant made payments in the total amount of \$78,500 but thereafter failed to complete the payments. (Manukyan Decl., ¶¶ 7-9.) Pursuant to the terms of the settlement agreement, if Defendant breached the agreement, the parties stipulated the Court should enter judgment. (Id., Exhibit A.)

The settlement

agreement also provides Plaintiff may recover attorney fees and costs in connection with enforcement of the settlement agreement. However, Plaintiff presents no evidence to corroborate the amount of fees Plaintiff seeks. Accordingly, the Court denies the request for fees as it is without evidentiary support.

Putting that

aside, the Court enters judgment against Defendant in the amount of \$96,500.

Plaintiff is to

give notice of the Court's ruling and to file proof of service of same.